

Calendar Line 6**Case Name:** *John Doe L.M. vs Craig Chandler, et al.***Case No.:** 25CV471073**Plaintiff's Motion to Compel Santa Clara County District Attorney's Office's Compliance with Subpoena for Production of Business Records and Request for Sanctions**

At the outset, the Court notes that the Santa Clara County District Attorney's Office ("SCCDAO") did not file a formal opposition to Plaintiff's motion. However, the absence of an opposition does not automatically entitle Plaintiff to the relief requested. Plaintiff bears the burden of establishing that the requested order is authorized and appropriate under the applicable legal standards. The Court further notes that Plaintiff's moving papers attach correspondence reflecting the SCCDAO's position concerning the subpoena. Although those communications do not constitute a formal opposition, they provide context regarding the nature of the dispute presented, which appears to concern primarily the legal scope of a nonparty deposition subpoena for production of business records.

Plaintiff served a deposition subpoena for production of business records seeking the SCCDAO's complete criminal investigative and prosecutorial file concerning Defendant Chandler, including materials originating from other agencies, such as police reports, search warrant materials, witness interviews, forensic examinations, school records, 911 calls, and audio/video evidence. The SCCDAO produced documents it contends are within its custodial responsibility, including charging documents, case summary materials, certain crime laboratory materials, and discovery transmittal documentation. The SCCDAO declined to produce materials created and maintained by other agencies, asserting that it is not the custodian of records for those materials and cannot provide the required certification under Evidence Code section 1561.

Plaintiff contends that the SCCDAO's reliance on Evidence Code section 1561 and *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039 is misplaced because authentication requirements concern admissibility rather than discovery, and because the relevant inquiry is whether the records are within the SCCDAO's possession, custody, or control.

The Court recognizes Plaintiff's argument that evidentiary authentication requirements do not necessarily resolve all questions concerning discoverability. However, Plaintiff's subpoena was directed to the SCCDAO as a nonparty custodian of business records. The Court is not persuaded that Plaintiff has established that the SCCDAO may be compelled, through this subpoena procedure, to produce and authenticate records created and maintained by separate governmental entities merely because those records were reviewed, received, or utilized during a criminal prosecution.

The issue before the Court is not whether the requested materials may ultimately be discoverable from an appropriate source. Rather, the issue is whether Plaintiff has demonstrated that the SCCDAO failed to comply with a deposition subpoena for production of business records by declining to produce records for which it asserts it is not the custodian of records.

On the present record, Plaintiff has not established that the SCCDAO's response was improper. The motion is therefore DENIED without prejudice.

Plaintiff's request for monetary sanctions in the amount of \$3,060 is DENIED. The Court finds that the dispute presents a legitimate legal issue concerning the scope of a nonparty business records subpoena and the application of Evidence Code section 1561. The SCCDAO's position, as reflected in the correspondence submitted by Plaintiff, was not shown to be unreasonable or made in bad faith.

The parties are encouraged to meet and confer regarding any remaining disputed categories of documents.

The Court will prepare the Order.

Calendar Line 8**Case Name:** *Yen Lucero v. Ha V. Dao***Case No.:** 26CV483739**Defendants' Motion to Expunge Notice of Pendency of Action**

A notice of pendency of action shall be expunged unless the claimant establishes by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) The claimant bears the burden of proof.

As an initial matter, Plaintiff's opposition was untimely filed. The Court has discretion to disregard the untimely opposition. Nevertheless, even considering the opposition and accompanying rebuttal on the merits, Plaintiff has not met her burden under section 405.32.

Plaintiff's opposition clarifies that the alleged fraudulent transfer is not limited to the approximately \$21,000 withdrawal discussed in Defendants' moving papers. Rather, Plaintiff now contends that the relevant transfer consists of the approximately \$425,000 cash down payment used to purchase the subject property and the conveyance of an ownership interest to Defendant Khoi Truong Nguyen, whom Plaintiff characterizes as an insider receiving title without consideration. Plaintiff further seeks to impose a constructive trust and avoid the alleged transfer. Assuming without deciding that these allegations are sufficient to assert a "real property claim" within the meaning of Code of Civil Procedure section 405.4, Plaintiff nevertheless fails to establish the probable validity of that claim.

The evidence submitted does not demonstrate, by a preponderance of the evidence, that funds belonging to the judgment debtor were used to acquire the subject property or that the debtor transferred an interest in the property subject to avoidance. Although Plaintiff argues that the \$425,000 down payment represented fraudulently transferred assets, Plaintiff offers no competent evidence tracing those funds to the judgment debtor. Likewise, Plaintiff has not presented evidence establishing that Defendant Ha Vu Le Dao held an ownership interest in the property that was transferred or concealed. By contrast, Defendants submit declarations stating that Hien Van Dao provided the down payment, obtained the mortgage financing, and that Ha Vu Le Dao never held title to the property.

Plaintiff also relies upon a June 30, 2026 Bankruptcy Court order authorizing the Chapter 7 Trustee to retain a forensic accounting firm to investigate potential avoidance issues. That order demonstrates only that further investigation has been authorized. It does not constitute a judicial finding that a fraudulent transfer occurred, nor does it establish the probable validity of Plaintiff's claims for purposes of Code of Civil Procedure section 405.32.

The Court also notes that Defendants argue Plaintiff lacks standing to pursue fraudulent transfer claims following Ha Vu Le Dao's Chapter 7 bankruptcy filing because such claims belong exclusively to the bankruptcy estate. The Court need not definitively resolve that issue on the present motion. Even assuming Plaintiff has standing to pursue the asserted claims, Plaintiff has not met the evidentiary burden required to establish their probable validity.

Accordingly, Plaintiff has failed to carry her burden under Code of Civil Procedure section 405.32, and the Notice of Pendency of Action must be expunged.